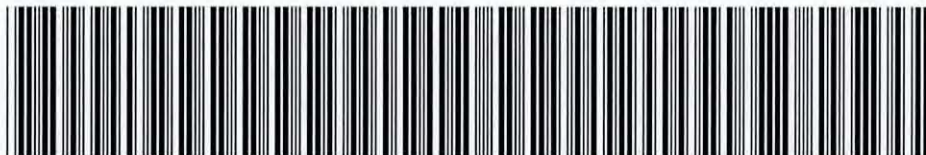


DI07-015

EWR D&I ANNOTATION

FAN-000001L063001DP515-3471

Artemis # : 000001L063001DP515**Record Created Date :** 04/17/2007**Printed Date :** 04/18/2007**Description :**

THE DATE WAS 08/03/06, AT APPROXIMATELY 6:45 AM. A 2005 SATURN ION {SUBJECT VEHICLE} WAS MAKING A LEFT HAND TURN FROM A FOUR LANE DIVIDED HIGHWAY TO A REGULAR COUNTY ROAD. SUBJECT VEHICLE WAS STRUCK IN THE RIGHT SIDE BY A 1984 CHEVY PICK-UP. THERE WAS EXTENSIVE DAMAGE TO THE SUBJECT VEHICLE AND THE DRIVER SUSTAINED FATAL INJURIES. TO DATE NO LEGAL COUNSEL HAS BEEN FILED, BUT THE DAUGHTER OF THE DECEDENT HAS CONTACTED SATURN CONCERNING THIS INCIDENT. IN A PHONE CALL TO SATURN, DECEDENTS DAUGHTER HAS STATED HER MOTHER WAS THE ONLY PERSON IN THE VEHICLE AND WHEN THE CRASH HAPPENED, HER SEAT BELT DID NOT FULLY RESTRAIN HER AND THE DRIVER'S SIDE AIR BAG DID NOT FULLY DEPLOY. SHE WAS ADVISED THAT THE CASE WAS BEING FOWARDED TO THE PRODUCT SUPPORT TEAM AND SHE WOULD BE CONTACTED. POLICE REPORT STATES THAT SUBJECT VEHICLE FAILED TO YIELD RIGHT OF WAY AND WAS STRUCK BY THE CHEVY TRUCK. GM DI RESPONSE CONSISTS OF DOCUMENTATION IN THIS REPORT PROVIDING GM'S ASSESSMENT OF THE INCIDENT AND THE ALLEGED DEFECT. NO SAFETY RECALLS, NO FIELD REPORTS, NO PURSUITS, NO COMPLAINTS OR VOQ'S CONCERNING THE NATURE OF THIS INCIDENT.

Print

Close



U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

FEB 21

Ms. Gay Kent
General Motors Corp.
Mail Code 480-210-G11
30001 Van Dyke
Warren, MI 48090

NVS-217ph
DI07-015

Dear Ms. Kent:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors (GM) in its light early warning report from 3rd quarter of 2006. We are writing to request additional information about the following incidents:

Selected Death and Injury Incidents	
For Reporting Category: L	
For the following Sequence IDs: 11, 125, 129, 146, 162, 167, 172, 186, 241, 261, 272, 273, 348, 358, 361, 371, 397, 437, 456, 462, 491, 494, 515, 518, 521, 524	

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the attached spreadsheet.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to GM.

Vehicle: the vehicle produced by GM that is identified in the claim or notice.

Tire: the tire produced by GM that is identified in the claim or notice.



VEHICLE SAFETY HOTLINE
888-327-4236

Equipment: the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM's response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

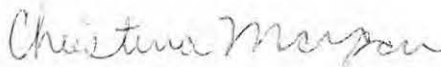
This letter is being sent to GM pursuant to 49 U.S.C. § 30166, which authorizes NHTSA to conduct any investigation that may be necessary to enforce Chapter 301 of Title 49 and to request reports and the production of things. It constitutes a new request for information. GM's failure to respond promptly and fully to this letter could subject GM to civil penalties pursuant to 49 U.S.C. § 30165 or lead to an action for injunctive relief pursuant to 49 U.S.C. § 30163. (Other remedies and sanctions are available as well.) Section 5(a) of the TREAD Act, codified at 49 U.S.C. § 30165(b), provides for civil penalties of up to \$5,000 per day, with a maximum of \$16,050,000 for a related series of violations, for failing or refusing to perform an act required under 49 U.S.C. § 30166. See 49 CFR 578.6 (as amended by 69 Fed. Reg. 57864 (Sept. 28, 2004)). This includes failing to respond to ODI information requests.

If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, Room 5219, 400 Seventh Street, S.W., Washington, D.C. 20590.

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **March 23, 2007**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,



Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement



GENERAL MOTORS NORTH AMERICA
Structure & Safety Integration

March 23, 2007

Ms. Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
National Highway Traffic Safety Administration
400 Seventh Street, S.W.
Washington, DC 20590

RECEIVED
NVS-215
2007 MAR 27 A 10:17

OFFICE OF
DEFECTS INVESTIGATION

NVS-217ph
DI07-015

Dear Ms. Morgan:

This is General Motors' (GM) response to your inquiry dated February 21, 2007 regarding certain death and injury incidents reported by GM in its light early warning report from 3rd quarter of 2006.

GM's response is comprised of 33 CDs for the incidents that are the subject of DI07-015.

Attachment "A" includes instructions for navigating the CD. Each CD, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 129 203427344 - 514185 and 2006 Chevrolet Cobalt. When the CD is launched, this identification number appears again along with all of the documents (including photographs and videos) on the CD listed under "Filename." The first document listed under Filename is an index with the Request and Responses, e.g., identified as 129 203427344 - 514185_00_Request and Responses. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the first two Inquiries and Responses in the index for the CD are as follows:

DI07-015
129 203427344 - 514185
2006 CHEVROLET COBALT

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Documents.

The remaining documents listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

129 203427344 - 514185_01_1 - is the first document responsive to Inquiry no. 1.
129 203427344 - 514185_02_1 - is the first document responsive to Inquiry no. 2.

Product Investigations

Mail Code: 480-210-G11 • 30001 Van Dyke • Warren, MI 48090
DI07-015 Response.doc



Your inquiries and our corresponding replies are as follows:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**

Response: See Attached Documents.

The table below lists the incidents that are the subject of DI07-015, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR), or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim." PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice." Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further. As such, the document included in response to Inquiry 1 that can be found on the enclosed CD for the PAR and Rumor case listed in the table, may not be a claim or notice of the type generally defined as such by §579.4(c).

(26 Vehicles from the BMH template)			
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)		TYPE
✓ 11	203426976-		NISM
✓ 125	203426862-		NISM
✓ 129	203427344-		NISM
✓ 146	203427546-		RUMOR
✓ 162	203427026-		NISM
✓ 167	203426947-		RUMOR
✓ 172	203427595-		NISM
✓ 186	203427398-		NISM
✓ 241	203427385-		LIT
✓ 261	203426764-		NISM
✓ 272	203426902-		NISM
✓ 273	203427403-		NISM
✓ 348	203427092-		RUMOR
✓ 358	203427555-		NISM
✓ 361	203427685-		NISM
✓ 371	203427189-		RUMOR
✓ 397	203426814-		LIT
✓ 437	203426885-		LIT
✓ 456	203427572-		LIT
✓ 462	203426837-		NISM
✓ 491	203426904-		NISM
✓ 494	203427078-		NISM
✓ 515	203427658-		NISM
✓ 518	203427782-		NISM
✓ 521	203427095-		RUMOR
✓ 524	203426911-		NISM

2. Provide a copy of the Police Accident Report.

Response: See Attached Documents.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

To date, General Motors' investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs, and evaluations by attorneys (and by consultants, claims analysts, investigators, and engineers working at the request of attorneys). GM is producing responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,

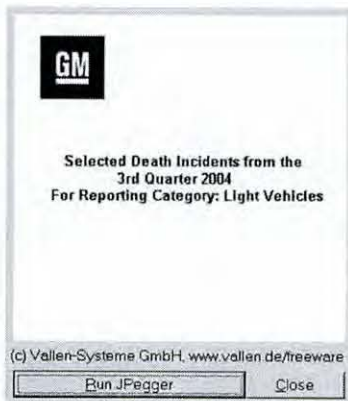


Gay P. Kent
Director
Product Investigations

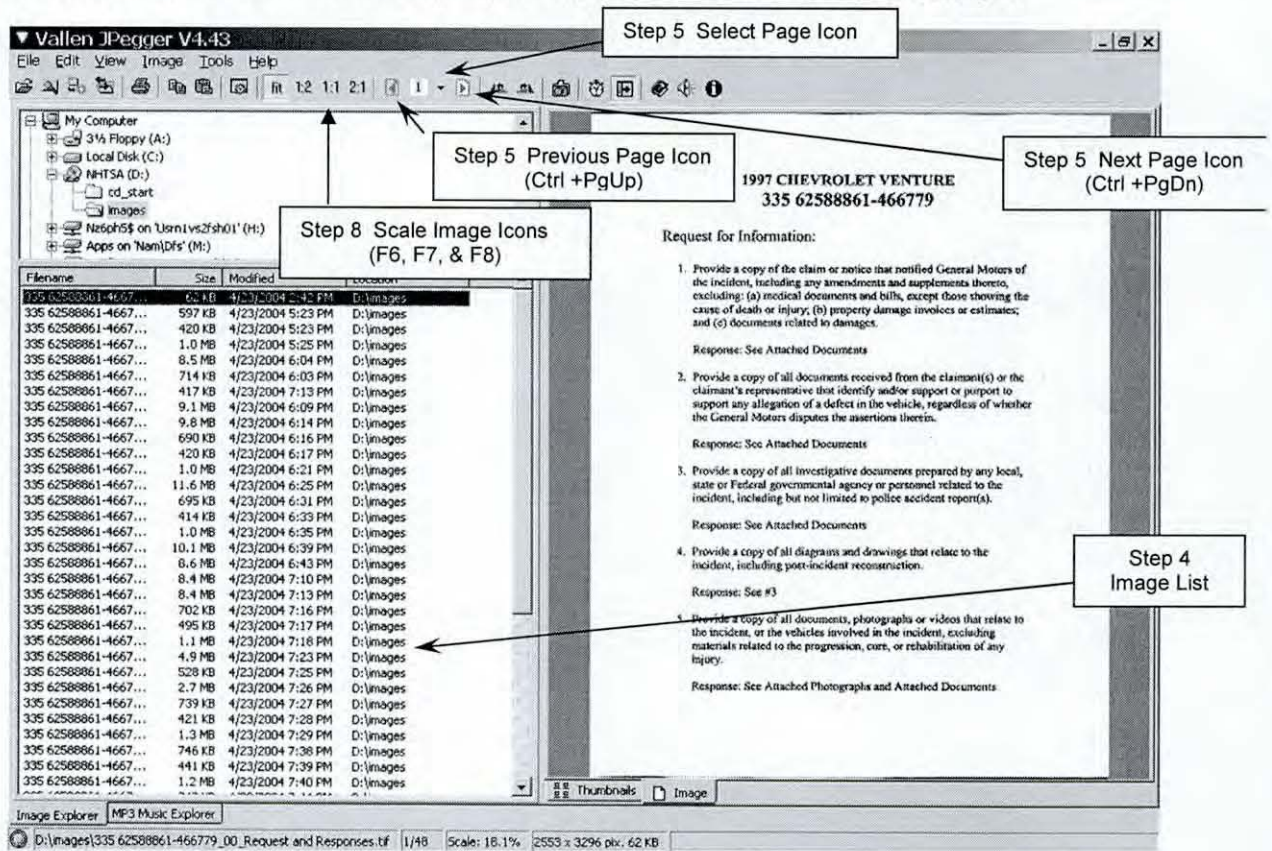
Enclosures: 33 CDs
Attachment A

Attachment A Instructions for using CD Viewer

1. Insert the CD into the CD ROM drive; the CD will open automatically.
2. Click the "Run JPegger" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.



Product Investigations

Mail Code: 480-210-G11 • 30001 Van Dyke • Warren, MI 48090
 DI07-015 Response.doc



5. Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl +PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl +PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages)
6. By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl +PgDn** or **Ctrl +PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
7. Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next page), or to view the next document within the file list (Next Image).
8. If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7**, and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

982.2(b)(1)

ATTORNEY OR PARTY WITHOUT ATTORNEY (Print name, title, number, and address)
 ERIC D. PARIS, ESQ., S/B# 147836
 LAW OFFICES OF ERIC D. PARIS & ASSOCIATES
 281 S. THOMAS STREET
 SUITE 403
 POMONA, CALIFORNIA 91766
 Telephone no.: 909-463-5127 FAX NO: 909-463-5126

ATTORNEY FOR: PLAINTIFF'S

RECEIVED BY COURT JUDGE, CLERK, AND BENCH/CLOCKER (if any)
 SUPERIOR COURT FOR THE STATE OF CALIFORNIA
 IDIO COURT

CASE NAME: CAROLINA V. CHEVROLET

CIVIL CASE COVER SHEET
☐ Limited ☒ Unlimited

Complex Case Designation
☐ Counter ☐ Joinder
 Filed with first appearance by defendant
 (Cal. Rules of Court, rule 1811)

CASE NUMBER:
 ATTORNEY JUDGE:

Please complete all five (5) items below:

1. Check one box below for the case type that best describes the case:

☒ Auto Tort (22)
☐ Other Personal Injury/Property Damage/Wrongful Death Tort
☐ Asbestos (24)
☐ Product Liability (24)
☐ Medical Malpractice (46)
☐ Other PIP/DVO (23)
☐ Non-PIP/DVO (Money) Tort
☐ Business tort/tortious business practice (27)
☐ Civil rights (e.g., discrimination, false arrest) (26)
☐ Defamation (e.g., slander, libel) (13)
☐ Fraud (16)
☐ Intellectual property (15)
☐ Professional negligence (e.g., legal malpractice) (25)
☐ Other non-PIP/DVO tort (20)
☐ Employment
☐ Wrongful termination (34)

☐ Other employment (15)
☐ Contract
☐ Breach of contract/warranty (06)
☐ Collections (e.g., money owed, open book accounts) (05)
☐ Insurance coverage (18)
☐ Other contract (27)
☐ Real Property
☐ Eminent domain/Inverse condemnation (14)
☐ Wrongful eviction (23)
☐ Other real property (e.g., quiet title) (28)
☐ Unlawful Detainer
☐ Commercial (21)
☐ Residential (22)
☐ Drugs (38)
☐ Judicial Review
☐ Asset forfeiture (26)
☐ Petition re: adoption record (11)

2. This case ☒ is ☐ is not complex under rule 1800 of the California Rules requiring exceptional judicial management:
 a. ☒ Large number of separately represented parties d. ☒ Large number of issues that will be time-consuming to resolve e. ☐ Coordination among parties in other counties
 b. ☐ Extensive motion practice raising difficult or novel issues that will be time-consuming to resolve f. ☐ Substantial post-trial issues
 c. ☒ Substantial amount of documentary evidence i. ☐ Substantial post-trial issues

3. Type of remedies sought (check all that apply):
 a. ☒ monetary b. ☐ nonmonetary, declaratory or injunctive relief c. ☐ other

4. Number of causes of action (specify): FIVE

5. This case ☐ is ☒ is not a class action suit.

Date: JULIE 3, 2003
 ERIC D. PARIS, ESQ., S/B# 147836
 (Print or stamp name)

NOTICE
 Plaintiff must file this cover sheet with the first paper filed in the action or proceeding (except under the Probate, Family, or Welfare and Institutions Code) (Cal. Rules of Court, rule 1800).
 • File this cover sheet in addition to any cover sheet required by local court rule.
 • If this case is complex under rule 1800 at seq. of the California Rules of Court, you must other parties to the action or proceeding.
 • Unless this is a complex case, this cover sheet shall be used for statistical purposes only.

From adopted for Mandatory Use
 Judicial Council of California
 982.2(b)(1) Rev. January 1, 2003

CIVIL CASE COVER SHEET

Right-click context menu options:
 Next Image
 Previous Image
 Next page (Ctrl+PgDn)
 Previous page (Ctrl+PgUp)
 Full screen image (Ctrl+F11)
 Slide show (F10)
 Fit Scale to fit (F5)
 Scale 50% (F6)
 Scale 100% (F7)
 Scale 200% (F8)
 Rotate left (Ctrl+Alt+L)
 Rotate right (Ctrl+Alt+R)
 Rotate by 180°
 Copy to clipboard
 Copy file to... (Ctrl+C)
 Move file to... (Ctrl+X)
 Rename file... (F2)
 Delete file... (Del)
 EXIF image information...
 Preferences... (Ctrl+R)

Step 7 Next File (Image)

Step 7 Next page

Step 8 Scale Image

Step 7 Image Properties

DI07-015
515 203427658 – 514978
2005 SATURN ION

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document and Photographs.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document and Photographs.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: See Attached Document. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

Print Date
9/7/2006

General Information

Incident Date & Time 8/3/2006

Owner _____
 Title - First Name _____ Middle _____ Last Name _____
 Street _____
 City Roanoke State VA Zip _____ Country - Age 0
 Home Phone _____ 0000 Work Ph. _____ 0000
 If Company Owned - Name - _____

Driver
Title Mrs First Name Middle - Last Name
Street same as owner
City - State - Zip - Country - Age -
Home Phone Work Ph.

Claimant
Title Ms First Name [REDACTED] Middle - Last Name [REDACTED]
Street - [REDACTED]
City - [REDACTED] State - [REDACTED] Zip - [REDACTED] Country - [REDACTED] Age - [REDACTED]
Home Phone [REDACTED] Work Ph. [REDACTED]

Represented by Attorney? No

Attorney
Title - First Name - Middle - Last Name -
Street -
City - State - Zip - Country - Age -
Home Phone Work Ph.

End of General Information

**Saturn Product Liability
Report of Preliminary Investigation**

** Saturn Confidential **

Case # (b) (6)

Print Date

9/7/2006

Vehicle Information

VIN 1G8AJ52F85Z [REDACTED]

2005

Delivery Date 12/20/2004

Year - Model ION New/Used/Demo USED

Mileage 15500

Transaxle MAN Engine 4 CYL 2.2L ENGINE

License# - State -

Inspection# -

Station -

Expiration Date -

Special Equipment/Features

Sir Equipped Yes ABS No Traction Control No

Nature and Extent of Damages
complete passenger side

Est. Cost of Repairs \$ 0

Source of Estimate -

Product Campaigns That Vehicle Was Subject of.
If Appropriate, Attach Copy of Campaign Bulletin.

Campaign Status Description

Tires	Size	Brand	Condition	Air/psi	Tread/32 in
Left Front	-	-	-	0	0
Comments	-	-	-	-	-
Right Front	-	-	-	0	0
Comments	-	-	-	-	-
Left Rear	-	-	-	0	0
Comments	-	-	-	-	-
Right Rear	-	-	-	0	0
Comments	-	-	-	-	-
Spare	-	-	-	0	0
Comments	-	-	-	-	-

End of Vehicle Information

Saturn Product Liability
Report of Preliminary Investigation

** Saturn Confidential **

Case # (b) (6)

Print Date

9/7/2006

Property Damage

Damage, Other than Owners Vehicle (Vehicle Property Yes Other Than Vehicle No)

Owner

Title - First Name - Middle - Last Name -

Street -

City - State - Zip - Country - Age 0

Home Phone Work Ph.

Driver

Title - First Name - Middle - Last Name -

Street -

City - State - Zip - Country - Age -

Home Phone Work Ph.

Vehicle

Make/Model/Year

-

Estimate of Speed 0

By Whom? -

Extent of Damage

4 wheel drive truck/late 70's

Property Owner

Title - First Name - Middle - Last Name -

Street -

City - State - Zip - Country - Age -

Home Phone Work Ph.

Kind of Damage

-

Extent of Damage

-

Additional Comments

-

End of Property Information

Saturn Product Liability
Report of Preliminary Investigation

** Saturn Confidential **

Case # (b) (6)

Print Date

9/7/2006

Bodily Injuries

Bodily Injuries? Yes

Number of People: 1

1)

Title Mrs First Name [REDACTED] Middle - Last Name [REDACTED]
Street [REDACTED]
City Roanoke State VA Zip [REDACTED] Country USA Age -
Home Phone [REDACTED] 0000 Work Ph. [REDACTED] 0000

Location Code -

Driver's Name : -

Seating Position: Driver

Nature of Injuries:

loss of life

Where were Injuries Treated?

By Whom?

Claimant Reported: Seat Belt Usage: Yes Shoulder Belts?: Yes Lap?: Yes

End of Bodily Injuries

Saturn Product Liability
Report of Preliminary Investigation

** Saturn Confidential **

Print Date

Case # (b) (6)

9/7/2006

Incident Information

Was Another Vehicle Involved? Yes Number of Vehicles 0

Did vehicle overturn? No

Where can vehicle be seen? Nationwide has the vehicle

Principal use of vehicle personal

Driver Description

Did you speak to driver? No

If No, Give Source of Driver Desc. -

Nature of Weather -

What Component(s) are Allegedly defective airbags/seatbelts

Who made allegation of defect Claimant-

Estimated Vehicle Speed 0 MPH

Source of Estimated Vehicle Speed Claimant

Was Vehicle towed? No

Towing Co. Name -

Towing Co. Address -

Tow Driver Name -

End of Incident Information

Saturn Product Liability
Report of Preliminary Investigation

** Saturn Confidential **

Case # (b) (6)

Print Date

9/7/2006

Location Information

Police Report Made? Yes Report Attached? No

Station Making Report -

Officer

Title - First Name - Middle - Last Name -

Street -

City - State - Zip - Country - Age -

Home Phone - Work Ph. -

Witness

Title - First Name - Middle - Last Name -

Street -

City - State - Zip - Country - Age -

Home Phone - Work Ph. -

Location of Incident

-

Kind of Road - Kind of Shoulder -
Condition of Road - Condition of Shoulder - Posted Speed 0 MPH

Visual Obstructions

-

Additional Comments

-

End of Location Information

Saturn Product Liability
Report of Preliminary Investigation

** Saturn Confidential **

Case # (b) (6)

Print Date
9/7/2006

Retailer / Parts Detail Information

Were Photos Taken? Yes Number? 5

By Whom?

Title - First Name Claimant Middle - Last Name -

Street -

City - State TN Zip - Country USA Age 0

Home Phone Work Ph.

Vehicle Inspected No Inspector(s) Name -

CIGNA Rep. at Investigation

Selling Retailer SATURN OF ROANOKE VALLEY

City SALEM State VA

Servicing Retailer SATURN OF ROANOKE VALLEY

City SALEM State VA

Did Search of the National Service History Produce Customer Service Orders? Yes

How Many Line Items? 13

How & When was matter left with claimant?

No resolution. Forward case to ESIS for handling. DMC

End of Retailer Information

Saturn Product Liability
Report of Preliminary Investigation

** Saturn Confidential **

Case # (b) (6)

Print Date

9/7/2006

General Comments

1-21550608 VIN # 52 Airbags/Seatbelts

Owner-

Driver-

Claimant- day phone-

09/07/06

I called the claimant, we discussed the incident, and she stated that her Mother, was involved in a fatal accident in the vehicle. The driver was making a left hand turn when a 4 wheel drive truck t-boned her in the passenger side, the vehicle then was knocked off of the highway and into the median where it came to rest. The claimant stated that she had photographs of the vehicle which she wanted to e-mail me. I advised the claimant that I will be documenting all of the information and forwarding the case to ESIS for handling, I provided her with the address for ESIS. DMC

09/07/06

I received 5 photographs of the vehicle from the claimant.

DMC

End of General Comments

Saturn Product Liability
Report of Preliminary Investigation

** Saturn Confidential **

Case # (b) (6)

Print Date

9/7/2006

Notification / Investigator Detail Information

Saturn Notified on Incident?

How? Service Request When? 9/6/2006

Area Assigned SE

CMD

Assignment

Investigator

First Name Doug

Middle M Last Name Cayton

Assignment Date 9/7/2006

Due Date

9/17/2006

Investigation Date -

Received Date

9/7/2006

Info. from Further Investigation

CIGNA Office Code DETROIT, MI

Date Sent -

Area Approved By -

Date

C.O.Approved By -

Date

End of Notify Information

Saturn Product Liability
Report of Preliminary Investigation
** Saturn Confidential **
Case # (b) (6)

Print Date
9/7/2006

Resolution Comments

Resolution: 1241, forwarded to CIGNA for handling

-

End of Resolution Comments

Saturn Product Liability
Option Report
** Saturn Confidential **

Case Nbr: (b) (6)
Vin: 1G8AJ52F85Z

OPTION CODE	OPTION DESCRIPTION
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C60	FRONT AIR COND./HEAT
AR9	FRONT BUCKET SEATS
6AB	STRUTS
D35	MIRROR O/S
J41	DISC/DRUM BRAKES
U1C	CD RADIO
7AB	FRONT STRUTS
8AF	RR LH STRUT
9AF	STRUTS
VK3	FRONT LICENSE PLATE
PG1	STEEL WHEEL
33L	GOLDEN WHEAT
33U	GOLDEN WHEAT
FE9	FEDERAL EMISSION
AK5	DRIVER/PASS AIR BAGS
L61	4 CYL 2.2L ENGINE
NK5	STD STEERING WHEEL
MN5	TRANSMISSION 4 SPD
52C	TAN CLOTH
B37	FLOOR MATS
DL5	ROADSIDE SERV DECAL
FE1	SUSPENSION SYS
IPC	TRIM INTERIOR DESIGN
K62	GENERATOR 105 AMP
MX0	MERCH TRAN AUTO
QTU	P195/60R15 TIRE
UH8	INSTRUMENT CLUSTER
US6	FIXED ANTENNA
UX7	4 SPEAKER SYSTEM
V73	US/CAN VEH STATEMENT
52I	TAN INTERIOR TRIM
RF3	MERCH PKG SDN 2 AUTO
BBC	BODY COLOR ROOFRAIL
NT7	FEDERAL EMISSIONS
FY1	TRANSAXLE RATIO 3.63

End Of Option Report

CSO History Information

Case # - (b) (6)

VIN - 1G8AJ52F85Z

Facility	CSO Nbr	Miles	Case Nbr	Case Typ	CSO Dt	Net Paid	Labor Op
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10161	0025980	3545	01	VW	7/29/2005	\$692.45	D4440
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Complaint	-	O13	-	INOPERATIVE
Conditon	-	-	-	-
Cause	-	C78	-	SEAL/SEALING/LEAKS
Failed Labor	-	-	-	-
Failed Part Nbr	-	22709081	-	COMPRESSOR KIT-A/C
Tech Comments	-	CUST STATES THE A/C IS NOT BLOWING COLD AIR, TECH VERIFIED THE CUST CONCERN AND FOUND THE COMPRESSOR LEAKS, AND THE SUCTION/DISCHARGE LINE LEAKS AT THE CONDENSOR CRIMP, TECH REPLACED THE COMPRESSOR, THE LINE, AND EVAC/RECHARGED THE SYSTEM TO CORRECT -ALL PARTS NEEDED FOR REPAIRS, REDUCED LABOR TIME -DUE TO OVERLAP		

10161	0025802	3341	01	CP	7/20/2005	\$0.00	D3000
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Complaint	-	M05	-	INSUFFICIENT HEAT/COOL
Conditon	-	-	-	-
Cause	-	C46	-	LOW/INSUFFICIENT FLUID
Failed Labor	-	-	-	-
Failed Part Nbr	-	-	-	-

10161	0024953	2609	01	VW	6/7/2005	\$93.67	D3000
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Complaint	-	O13	-	INOPERATIVE
Conditon	-	-	-	-
Cause	-	C46	-	LOW/INSUFFICIENT FLUID
Failed Labor	-	-	-	-
Failed Part Nbr	-	-	-	-
Tech Comments	-	TECH RECOVERED THE A/C SYSTEM AND FOUND .8LBS IN THE SYSTEM .1LB LOW CAUSING THE CUST CONCERN WITH THE A/C NOT BLOWING REAL COLD AIR, TECH RECHARGED THE A/C TO CAPACITY TO CORRECT		

10161	0022310	11	01	LR	1/20/2005	\$375.00	X5044
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Complaint	-	-	-	-
Conditon	-	-	-	-
Cause	-	-	-	-
Failed Labor	-	-	-	-
Failed Part Nbr	-	-	-	-
Tech Comments	-	CUST NAME: [REDACTED] DEL DATE: 12/28/04		

10161	0022310	11	02	LR	1/20/2005	\$1,000.00	X5120
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Complaint	-	-	-	-
Conditon	-	-	-	-
Cause	-	-	-	-
Failed Labor	-	-	-	-
Failed Part Nbr	-	-	-	-
Tech Comments	-	CUST NAME: [REDACTED] DEL DATE: 12/28/04 VOUCHER #SDV19645680, SDV18170431, SDV32625457, SDV3968622		

CSO History Information

Case # - (b) (6)
VIN - 1G8AJ52F85Z

Facility	CSO Nbr	Miles	Case Nbr	Case Typ	CSO Dt	Net Paid	Labor Op
10161	0022310	11	03	LR	1/20/2005	\$500.00	X5122
	Complaint	-	-				
	Conditon	-	-				
	Cause	-	-				
	Failed Labor	-	-				
	Failed Part Nbr	-	-				
	Tech Comments	-	CUST NAME: [REDACTED]				
			DEL DATE: 12/28/04				
10161	0022310	11	04	LR	1/20/2005	\$1,000.00	X5140
	Complaint	-	-				
	Conditon	-	-				
	Cause	-	-				
	Failed Labor	-	-				
	Failed Part Nbr	-	-				
	Tech Comments	-	CUST NAME: [REDACTED]				
			DEL DATE: 12/28/04				
10161	0104044	10	01	SM	12/20/2004	-\$585.00	X2000
	Complaint	-	-				
	Conditon	-	-				
	Cause	-	-				
	Failed Labor	-	-				
	Failed Part Nbr	-	-				
10161	0021687	9	01	CP	12/20/2004	\$0.00	M6011
	Complaint	-	-				
	Conditon	-	-				
	Cause	-	-				
	Failed Labor	-	-				
	Failed Part Nbr	-	-				
10161	0021230	5	01	PD	11/26/2004	\$102.43	Z7000
	Complaint	-	-				
	Conditon	-	-				
	Cause	-	-				
	Failed Labor	-	-				
	Failed Part Nbr	-	-				
	Tech Comments	-	KEY CODE G1402				

CSO History Information

Case # - (b) (6)
VIN - 1G8AJ52F85Z

Facility	CSO Nbr	Miles	Case Nbr	Case Typ	CSO Dt	Net Paid	Labor Op
10161	0021227	4	01	CP	11/26/2004	\$0.00	M5145
	Complaint	-	-				
	Conditon	-	-				
	Cause	-	-				
	Failed Labor	-					
	Failed Part Nbr	-	-				
10161	0021227	4	02	CP	11/26/2004	\$0.00	X0077
	Complaint	-	-				
	Conditon	-	-				
	Cause	-	-				
	Failed Labor	-					
	Failed Part Nbr	-	-				
10161	0021227	4	03	CP	11/26/2004	\$0.00	X0076
	Complaint	-	-				
	Conditon	-	-				
	Cause	-	-				
	Failed Labor	-					
	Failed Part Nbr	-	-				

END OF CSO HISTORY REPORT

Saturn CAC Information

** Saturn Confidential **

Case # (b) (6)

Print Date
9/7/2006

CAC Case Information

CAMIS Case Number (b) (6)

Owner:

[REDACTED]

Roanoke

VA

Home Phone:

[REDACTED]

Work Phone:

Source:

Family Member

Contact:

Service Request

Issue Comments:

-mileage approx. for EdsNet.- [REDACTED] owners sister stated August 3rd. at 6:45 am, her mother, [REDACTED], was in a fatal accident. She was making a left hand turn onto Mountain Pass Rd. from 460 E. A pickup truck T-boned the vehicle passenger side. It was a overcast day but not raining and it is a paved road. Her mother was the only

Vehicle:

1G8AJ52F85Z [REDACTED] 2005

Mileage:

15500

Delivery:

12/20/2004

In Warranty:

Yes

Retailer:

10161

Problems:

0 s - (SIR) - DriC46 - Restraintver Front

Resolution Comments:

one in the vehicle. She was wearing her seat belt. She doesn't believe the seat belt locked up properly and the air bags did deploy, but it looks like the driver side air bag did not deploy fully. I advised I was forwarding the case to the product support team and that she would be contacted.

Memo:

No

Corporate File:

Yes

Legal:

No

Letter:

No

Close:

Yes

End of CAC Case Information

TA000091855

Saturn CAC Information
** Saturn Confidential **
Case # (b) (6)

Print Date
9/7/2006

CAC Legal Information

CAMIS Case Number (b) (6)

Legal Information I

Case Type: Product Liabili
PL Basic Info: Product Liabili
Reason:
-

Representation: No

Request: -
Vehicle Disposition: -

Legal Information II

Outcome: -
Legal Correspondence: No

PL Basic Information I

Allegation: seat belts/air bags
Driver at time of incident: (b) (6)
Vehicle Damage: Yes Description: complete passenger side
Property Damage: No Description: -
Date and Time of the incident: 8/3/2006

PL Basic Information II

Injuries: Yes Description: loss of life
Additional Vehicle Involved? Yes Description: 4 wheel drive truck/late 70's
Police Report Filed? Yes Where? State trooper Rigby
Where is the vehicle now? Nationwide has the vehicle
Contact # for vehicle location: 54034482270000
Claimant's Permission for Investigation? No

End of CAC Legal Information

Saturn CAC Information
** Saturn Confidential **
Case # (b) (6)

Print Date
9/7/2006

CAC Memopad Information

CAMIS Case Number 21550608

Date: 9/6/2006 1 User: DCAYTON Approve

Type: Approve - Contact Name: Doug Cayton print off

Date: 9/6/2006 9 User: ASANDS Inbound Call

Type: Inbound Call - Contact Name: [REDACTED] owners sister stated: -August 3rd. at 6:45 am, her mother, [REDACTED], was in a fatal accident. -she was making a left hand turn onto Mountain Pass Rd. from 460 E. -460 E. is a 4 lane road, median in the middle. -a pickup truck T-boned the vehicle-passenger side. -the pickup was a late 70's model 4 wheel drive pickup. -it was a overcast day but not raining and it is a paved road. -her mother was the only one in the vehicle. -she was wearing her seat belt. -she doesn't believe the seat belt locked up properly. -the air bags did deploy, but it looks like the driver side air bag did not deploy fully. -the passenger side door has about a 2 foot hole in it. -and is cracked from the bottom to the trim. -the dash, where the radio is, is hanging off the dash. -it looks as if the front axle is broken. -the pickup truck had a broken grill. -she believes it was towed from the scene. -her mother sustained a broken left arm, a broken right leg, internal bleeding, a gash on the head, and sustained brain damage. -she has received the pictures of the vehicle. -there is blood on the inside passenger door and passenger seat. -she will send the pictures in. -she feels Saturn should see them. -the insurance company is Nationwide, Agent: Rob Agee, phone # 540-387-0281, 1621 E. Main St. Salem VA 24153. -when she spoke to the insurance company they were hostile with her and told her they do not have to release any information to her since the vehicle is in her brother's name. -State trooper Rigby was the trooper on the scene of the accident and that filed the police report. -she can be reached at work during the day at [REDACTED] and in the evenings at [REDACTED] I advised I was forwarding the case to the product support team and that she would be contacted.

Date: 9/6/2006 1 User: ASANDS Outbound Retailer Call

Type: Outbound Retailer Call - Contact Name: [REDACTED] spoke with Scott the FOM to advise this vehicle was involved in a fatal accident. And that part of the process is to give them a heads up in the event the vehicle is brought into the facility. He thanked me for the info.

Date: 9/6/2006 9 User: DCAYTON SR Summary

SR Summary-mileage approx. for EdsNet. - [REDACTED], owners sister stated August 3rd. at 6:45 am, her mother, [REDACTED], was in a fatal accident. She was making a left hand turn onto Mountain Pass Rd. from 460 E. A pickup truck

Saturn CAC Information

** Saturn Confidential **

Case # (b) (6)

Print Date

9/7/2006

T-honed the vehicle passenger side. It was a overcast day but not raining and it is a paved road. Her mother was the only one in the vehicle. She was wearing her seat belt. She doesn't believe the seat belt locked up properly and the air bags did deploy, but it looks like the driver side air bag did not deploy fully. I advised I was forwarding the case to the product support team and that she would be contacted.

Date: 9/6/2006 9 User: DCAYTON Standard Questions

1. There were injuries as a result of the accident. 2. Injuries: loss of life
3. There was no property damage as a result of the accident. 4. [REDACTED]
was driving at the time of the incident. 5. There was 1 occupant in the vehicle.
6. The Owner's daytime phone is [REDACTED] The Owner's evening phone is [REDACTED]
The Claimant's daytime phone is [REDACTED] The
Claimant's evening phone is [REDACTED] 7. The events leading up to the
incident are as follows: seat belts/air bags 8. The incident occurred on
08/03/2006 at 06:45. 9. 460 E. and Mountain Pass Rd. in Blue Ridge VA 10. overcast
but not raining 11. paved 12. The vehicle speed is unknown. 13. Nationwide, Agent:
Rob Agee, phone # 540-387-0281 1621 E. Main St. Salem VA 24153 14. Vehicle Loc:
Nationwide has the vehicle 15. Vehicle Damage: complete passenger side 16. Police
Report: State trooper Rigby 17. Other Damage: 4 wheel drive truck/late 70's 18.
Permission has not been granted to inspect the vehicle.

End of CAC Memopad Information



TOTAL P.04

Police Crash Report

If a question does not apply, enter an "X". • If an answer is unknown, enter a "U" or appropriate number. • "Other" explain in crash description. FR300T (Rev 9/03)

Traffic control 1. No traffic control 2. Officer or flagger 3. Traffic signal 4. Stop sign 5. Slow or warning sign 6. Traffic lanes marked 7. No passing lines 8. Yield sign 9. One way road or street 10. Railroad crossing with markings and signs 11. Railroad crossing with signals 12. Railroad crossing with gate and signals 13. Other 14. Pedestrian crosswalk 15. Reduced speed - school zone 16. Reduced speed - work zone 17. Special corridor		Vehicle maneuver 1. Going straight ahead 2. Making right turn 3. Making left turn 4. Making U-turn 5. Slowing or stopping 6. Starting in traffic lane 7. Starting from parked position 8. Stopped in traffic lane 9. Ran off road - right 10. Ran off road - left 11. Parked 12. Backing 13. Passing 14. Changing lanes 15. Other 16. Entering street from parking lot		Vehicle 1 21
Was traffic control working? 1. Yes 2. No		Type of collision 1. Rear end 2. Angle 3. Head on 4. Sideswipe - same direction 5. Sideswipe - opposite direction 6. Fixed object in road 7. Train 8. Non-collision 9. Fixed object - off road 10. Deer 11. Other animal 12. Pedestrian 13. Bicyclist 14. Motorcyclist 15. Backed into 16. Other		1st event Vehicle w/ 23 2nd event Vehicle 1 24 Vehicle 2 25
Roadway alignment 1. Straight - Level 2. Curve - Level 3. Grade - Straight 4. Grade - Curve 5. Hillcrest - Straight 6. Hillcrest - Curve 7. Dip - Straight 8. Dip - Curve 9. Other 10. On/Off Ramp		Collision with fixed object 1. Bank or ledge 2. Trees 3. Utility pole 4. Fence or post 5. Guard rail 6. Parked vehicle 7. Tunnel, bridge, underpass, culvert, etc. 8. Sign, traffic signal 9. Impact cushioning device 10. Other 11. Jersey wall 12. Building/structure		Vehicle 1 26 Vehicle 2 27
Weather 1. Clear 2. Cloudy 3. Fog 4. Mist 5. Rain 6. Snow 7. Sleet/Hail 8. Smoke/Dust 9. Other		Driver's action 1. No improper action 2. Exceeded speed limit 3. Exceeded safe speed but not speed limit 4. Overtaking on hill 5. Overtaking on curve 6. Overtaking at intersection 7. Improper passing of school bus 8. Cutting in 9. Other improper passing 10. Wrong side of road - not overtaking 11. Did not have right-of-way 12. Following too close 13. Fail to signal or improper signal 14. Improper turn - wide right turn 15. Improper turn - cut corner on left turn 16. Improper turn from wrong lane 17. Other improper turn 18. Improper backing 19. Improper start from parked position 20. Disregarded officer or flagger 21. Disregarded traffic signal 22. Disregarded stop or yield sign 23. Driver distraction 24. Fail to stop at through highway - no sign 25. Drive through work zone 26. Fail to set out flares or flags 27. Fail to dim headlights 28. Driving without lights 29. Improper parking location 30. Avoiding pedestrian 31. Avoiding other vehicle 32. Avoiding animal 33. Crowded off highway 34. Hit and run 35. Car ran away - no driver 36. Blinded by headlights 37. Other 38. Avoiding object in roadway 39. Eluding police 40. Fail to maintain proper control 41. Improper passing 42. Improper or unsafe lane change 43. Over correction		Vehicle 1 28 Vehicle 2 29 Vehicle 1 30 Vehicle 2 31 Vehicle 1 32 Vehicle 2 33
Roadway surface condition 1. Dry 2. Wet 3. Snowy 4. Icy 5. Muddy 6. Oil/other fluids 7. Other 8. Natural debris 9. Roadway flooded		Driver vision obscured 1. Not obscured 2. Rain, snow, etc. on windshield 3. Windshield otherwise obscured 4. Vision obscured by load on vehicle 5. Trees, crops, etc. 6. Building 7. Embankment 8. Sign or signboard 9. Hillcrest 10. Parked vehicle(s) 11. Moving vehicle(s) 12. Sun or headlight glare 13. Other 14. Blind spot 15. Smoke/dust 16. Stopped vehicle(s)		Vehicle 1 34 Vehicle 2 35
Light conditions 1. Dawn 2. Daylight 3. Dusk 4. Darkness - roadway lighted 5. Darkness - roadway not lighted		Type of driver distractions 1. Looking at roadside incident 2. Driver fatigue 3. Looking at scenery 4. Passenger(s) 5. Radio/CD, etc. 6. Cell phone 7. Eyes not on road 8. Daydreaming 9. Eating/drinking 10. Adjusting vehicle controls 11. Other		Vehicle 1 36 Vehicle 2 37 Pedestrian 38
Kind of locality 1. School 2. Church 3. Playground 4. Open country 5. Business/Industrial 6. Residential 7. Interstate/Limited access 8. Other 9. Bridge/Tunnel 10. Parking lot		Condition of driver/pedestrian contributing to the crash 1. No defects 2. Eyesight defective 3. Hearing defective 4. Other body defects 5. Illness 6. Fatigued 7. Apparently asleep 8. Other		Vehicle 1 37 Vehicle 2 38 Pedestrian 39
Work zone 1. Active 2. Inactive 3. No work zone 4. Unknown		Drinking 1. Had not been drinking 2. Drinking - Obviously drunk 3. Drinking - Ability impaired 4. Drinking - Ability not impaired 5. Drinking - Not known whether impaired		Vehicle 1 40 Vehicle 2 41 Pedestrian 42
Work zone - workers present 1. Yes 2. No 3. Unknown		Method of alcohol determination (by police) 1. Blood 2. Breath 3. Refused 4. No test		Vehicle 1 43 Vehicle 2 44 Pedestrian 45
Surface type 1. Concrete 2. Blacktop, asphalt, bituminous 3. Brick or block 4. Slag, gravel, stone 5. Dirt 6. Other 7. Unknown		See reverse side for vehicle types and diagrams		Vehicle 1 46 Vehicle 2 47 Vehicle 1 48 Vehicle 2 49
Vehicle occupied (or pedestrian) 1. Vehicle No. 1 2. Vehicle No. 2 B Bicyclist P Pedestrian O Other		Injury type 1. Dead before report made 2. Visible signs of injury, as bleeding wound or distorted member or had to be carried from scene. 3. Other visible injury, as bruises, abrasions, swelling, limping, etc. 4. No visible injury, but complaint of pain, or momentary unconsciousness.		Vehicle 1 50 Vehicle 2 51
Position in/on vehicle 1. Driver 2-6 Passengers 7. Cargo area 8. Riding/hanging on outside 9-98. All other passengers		Pedestrian actions 1. Crossing at intersection - with signal 2. Crossing at intersection - against signal 3. Crossing at intersection - no signal 4. Crossing at intersection - diagonally 5. Crossing not at intersection - rural 6. Crossing not at intersection - urban 7. Coming from behind parked cars 8. Getting off or on school bus 9. Playing in roadway 10. Getting off or on another vehicle 11. Hitching on vehicle 12. Walking in roadway with traffic - sidewalks available 13. Walking in roadway with traffic - sidewalks not available 14. Walking in roadway against traffic - sidewalks available 15. Walking in roadway against traffic - sidewalks not available 16. Working in roadway 17. Standing in roadway 18. Lying in roadway 19. Not in roadway 20. Other		Vehicle 1 52 Vehicle 2 53
Safety equipment used 1. No restraint used 2. Lap belt only 3. Shoulder belt only 4. Lap and shoulder belts 5. Child restraint 6. Helmet 7. Other 8. Booster seat		Vehicle condition 1. No defects 2. Lights defective 3. Brakes defective 4. Steering defective 5. Puncture/blowout 6. Worn or slick tires 7. Motor trouble 8. Chains in use 9. Other 10. Vehicle altered		Vehicle 1 54 Vehicle 2 55
Air bag 1. Deployed 2. Not deployed 3. Unavailable 4. Keyed off 5. Unknown		Ejection from vehicle 1. Not ejected 2. Partially ejected 3. Totally ejected		Vehicle 1 56 Vehicle 2 57
Birth date MM DD YYYY		Gender M/F		Vehicle 1 58 Vehicle 2 59
Names of injured (If deceased give date of death)		EMS transport		Vehicle 1 60 Vehicle 2 61
Date of death MM/DD/YYYY		Vehicle damage 1. Unknown 2. No damage 3. Overturned 4. Motor 5. Undercarriage 6. Totaled 7. Fire 8. Other		Vehicle 1 62 Vehicle 2 63



VIRGINIA STATE POLICE

3775 West Main Street
Salem, VA 24153
(540) 375-0500

www.virginiastatepolice.org

FACSIMILE TRANSMITTAL SHEET

Date: 9-20-16TO: Cas

FROM:

AGENCY:

AGENCY:

Virginia State Police

FAX NUMBER: 301-432-2409

FAX NUMBER:

540-387-6527

PHONE NUMBER:

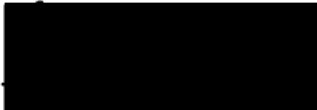
PHONE NUMBER:

540-375-0500

RE:

☐ URGENT☐ FOR REVIEW☐ PLEASE COMMENT☐ PLEASE REPLY☐ PLEASE RECYCLE

NOTES/COMMENTS:

TOTAL NO. PAGES TRANSMITTED INCLUDING COVER: 1

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November 30, 2006

ESIS/GM Central Claims Unit
P.O. Box 300
Mail Code 482 C20 D71
Detroit, MI 48265-3000

800.888.0164 *tel*
313.665.0911 *fax*

Sean Kelly
Claims Administrator

[REDACTED]
Blue Ridge VA [REDACTED]

RE: Claimant: [REDACTED]
Our File No.: 514978
Our Client: General Motors
Date/Event: 8-3-06
Subject vehicle: 2005 Saturn Ion

Dear [REDACTED]

Thank you for discussing this matter again with me today. As I mentioned, we have completed our investigation into the August 3, 2006 accident.

Based on all documentation received and reviewed, the driver's seat belt performed properly. Therefore, ESIS, on behalf of General Motors Corporation, will not be in a position to honor any request for damages. If you have any additional evidence that supports the claim of a product defect, please forward it to my attention for further review.

Sincerely,

Sean Kelly